Supreme Court, U.S.
FILED

98 1993 JUN 7 1999

OFFICE OF THE CLERK

CASE NO.

IN THE UNITED STATES SUPREME COURT

October Term 1998

THE STATE OF FLORIDA,

Petitioner,

vs.

J.L., a juvenile,

Respondent.

PETITION FOR WRIT OF CERTIORARI TO
THE SUPREME COURT OF FLORIDA

ROBERT A. BUTTERWORTH
ATTORNEY GENERAL

MICHAEL J. NEIMAND
Assistant Attorney General
Florida Bar No. 0239437
Office of the Attorney General
110 S.E. 6th Street - 9th Floor
Ft. Lauderdale, Florida 33301
(954) 712-4600

RECEIVED
JUN 11 1999
OFFICE OF THE CLERK
SUPREME COURT, U.S.

QUESTION PRESENTED

Whether an anonymous tip which states that a person is carrying a concealed firearm at a specific location, with a detailed description of the person and his attire, is sufficiently reliable to justify an investigatory detention and frisk where the police immediately verify the accuracy of the tip?

TABLE OF CONTENTS

Page

QUESTION PRESENTED i

TABLE OF CONTENTS ii

TABLE OF AUTHORITIES . . . . . iii-v

OPINIONS BELOW 1

JURISDICTION 1

CONSTITUTIONAL AND
STATUTORY PROVISIONS INVOLVED 2

STATEMENT OF THE CASE AND FACTS 4

REASONS FOR GRANTING THE WRIT 8

CONCLUSION 16

APPENDIX . . . . .

Opinion, J.L. v. State, Supreme Court of Florida, December 17,1998 . . . . . A-1

Order Denying Rehearing, March 9, 1999 . . . . . A-29

Opinion, J.L. v. State, District Court of Appeal of Florida, Third District, February 12, 1997 . . . . . A-31

Order Granting Motion to Suppress, Circuit Court of the 11th Judicial Circuit of the State of Florida in and for Miami-Dade County Dated April 11,1996 . . . . . A -35

Excerpt from the evidentiary hearing on Respondent's Motion to Suppress A-36

TABLE OF AUTHORITIES

CASES **PAGE**

Berger v. New York,
388 U.S. 41, 87 S. Ct. 1873, 18 L. Ed. 2d 1040 (1967) 11

Commonwealth v. Alvarado,
667 N.E.2d 858 (Mass. 1996) 13

Commonwealth v. Hawkins,
692 A.2d 1068 (Pa. 1997) 9,13

Graham v. Commonwealth,
667 S.W.2d 697 (Ky. Ct. App. 1983) 9

J.L. v. State,
689 So. 2d 1116(Fla. 3d DCA 1997) 1

Johnson v. State,
439 A.2d 607 (Md. Ct. Spec. App. 1982) 9

Ker v. California,
374 U.S. 23, 83 S. Ct. 1623, 10 L. Ed. 2d 726 (1963) 11

People v. McLaurin,
374 N.E.2d 614 (N.Y. 1978) 9

People v. Smithers,
415 N.E.2d 327 (Ill. 1980) 9

Roaden v. Kentucky,
413 U.S. 496, 93 S. Ct. 2796, 37 L. Ed. 2d 757 (1973) . . . 10,11

Speight v. United States,
671 A.2d 442 (D.C. 1996) 9

State in re H.B.,
381 A.2d 759 (N.J. 1977) 9

State v. Franklin,
704 P.2d 666 (Wash. Ct. App. 1985) 9

State v. Hasenbank,
425 A.2d 1330 (Me.-1981) 9

State v. J.L.,
727 So. 2d 204 (Fla. 1998) 1

State v. Jernigan,
377 So. 2d 1222 (La. 1979) 9

State v. Kuahuia,
616 P.2d 1374 (Haw. 1980) 9

State v. Pulley,
863 S.W.2d 29 (Tenn. 1993) 9

State v. Sharpless,
715 A.2d 733 (N.J. Super Ct. App. Div. 1998); 9

State v. Williams,
598 A.2d 1258 (N.J. Super. Ct. Law Div. 1991) 9

Terry v. Ohio,
392 U.S. 1, 88 S. Ct. 1868, 20 L. Ed. 2d 889 (1968) . 6,9,12,14

United States v. Bold,
19 F.3d 99 (2nd Cir. 1994) 5,9,10

United States v. Clipper,
973 F.2d 944 (D.C. Cir. 1992) 9

United States v. DeBerry,
76 F.3d 884 (7th Cir. 1996) 9

United States v. Gibson,
64 F.3d 617 (11th Cir. 1995) 9,14

United States v. Johnson,
540 A.2d 1090 (D.C. 1988) 9

United States v. Mason,
450 A.2d 464 (D.C. 1982) 9

United States v. McClinnhan,
660 F.2d 500 (D.C. Cir. 1981) 9

United States v. Montoya de Hernandez,
473 U.S. 531, 105 S. Ct. 3304, 87 L. Ed. 2d 351 (1983) 14

United States v. Roberson,
90 F.3d 75 (3rd Cir. 1996) 9,10

United States v. Sokolow,
490 U.S. 1, 109 S. Ct. 1581, 104 L. Ed. 2d 1 (1990) . . 12,13,14

STATUTES

28 U.S.C. § 1257(a) 1

CASE NO.
IN THE UNITED STATES SUPREME COURT
October Term 1998

THE STATE OF FLORIDA,
Petitioner,

vs.

J.L., a juvenile,
Respondent.

OPINION BELOW

The decision from which Petitioner seeks to invoke the discretionary review of this Court is reported at *J.L. v. State*, 727 So. 2d 204 (Fla. 1998).[A-1].[1] The decision of the District Court of Appeal of Florida, Third District is reported at 689 So. 2d 1116. [A-31]. The trial court's order granting the motion of Respondent, J.L., to suppress the evidence is not reported.[A-35].

JURISDICTION

The Supreme Court of Florida's opinion was filed on December 17, 1998 and rehearing was denied on March 9, 1999. This Court has jurisdiction pursuant to 28 U.S.C. § 1257(a).

---

[1] The symbol "A" followed by the appropriate number represents a citation to the materials contained in the Appendix to this pleading.

CONSTITUTIONAL PROVISIONS INVOLVED

Amendment IV, United States Constitution, provides, in pertinent part:

> The right of the people to be secure in their persons, houses, papers and effects, against unreasonable searches and seizures, shall not be violated, and no warrants shall issue, but upon probable cause...

Amendment XIV, §I, United States Constitution, provides, in pertinent part:

> ...nor shall any state deprive any person of life, liberty, or property, without due process of law...

Article I, § 12, Florida Constitution, provides:

> The right of the people to be secure in their persons, houses, papers and effects against unreasonable searches and seizures, and against the unreasonable interception of private communications by any means, shall not be violated. No warrant shall be issued except upon probable cause, supported by affidavit, particularly describing the place or places to be searched, the communication to be intercepted, and the nature of the evidence to be obtained. This right shall be construed in conformity with the 4th Amendment to the United States Constitution, as interpreted by the United States Supreme Court. Articles or information obtained in violation of this right shall not be admissible in evidence if such articles or information would be inadmissible under decisions of the United States Supreme Court construing the 4th Amendment to the United States Constitution,

STATEMENT OF THE CASE AND FACTS

Respondent, J.L., was the Petitioner in the Supreme Court of Florida. The facts of the case were established in the evidentiary hearing held by the trial court on Respondent's motion to suppress. The evidence that was the subject of the suppression motion was a firearm. Based on Respondent's possession of the gun, a petition for delinquency was filed, charging Respondent with unlawfully carrying a concealed firearm and unlawful possession of a firearm by one under 18 years of age. [A-19].

The sole witness at the evidentiary hearing on the motion to suppress was Officer Carmen Anderson. She testified that on October 13, 1995 while on patrol, she was dispatched to the area of 183rd Street and 24th Avenue in Miami based on information received from an anonymous tipster. The details of the tip were that there were several young black males standing at a bus stand in front of a pawn shop, one of whom was carrying a concealed firearm. The individual carrying the firearm was described as a black male with a plaid shirt. The informant also gave a description of the other men at the bus stop. [A-40-41].

Officer Anderson and another unit arrived at the bus stop approximately six minutes after receiving the dispatch. As Officer Anderson and the other officer approached the bus stop, Officer Anderson saw three black males, one of whom was wearing a plaid shirt. The three black males were found at the precise location where the anonymous informant said they would be found. [A-41-42].

Officer Anderson immediately went to the black male fitting the description of the one who was carrying a concealed firearm. She asked the black male with the plaid shirt to place his hands on the bus stop. As Officer Anderson began to frisk him, she saw the butt of a gun coming out of his left pants pocket. She removed the gun and arrested the Respondent. [A-42].

The trial court found the evidence was insufficient to support a reasonable suspicion of criminal activity and suppressed the gun. [A-

35-36]. The Petitioner, the State of Florida, appealed the suppression order to the District Court of Appeal of Florida, Third District.

The Third District reversed the trial court's granting of the motion to suppress. The Third District concluded that there was reasonable suspicion that Respondent was committing the crime of carrying a concealed firearm and thus the officer was justified in stopping and frisking him. The Third District based this holding on the ground that the police officers found themselves, based on the extent of verification, in a situation in which they had a reasonable suspicion that Respondent was carrying a concealed weapon and they had to take some action, but in doing so, they also had to secure their own safety. This the officer did by the warrantless frisk. The Third District agreed with the analysis by the court in *United States v. Bold,* 19 F.3d 99 (2nd Cir. 1994) , where the court held that where a confirmed tip concerns an individual with a gun, the officer is faced with the choice of stopping and searching the individual, or waiting until the individual brandishes or uses the gun and the latter choice is unacceptable, thus leaving the stop and frisk as the only reasonable choice. [A-31-34].

The Respondent then sought to invoke the discretionary jurisdiction of the Supreme Court of Florida. The court accepted jurisdiction and quashed the decision of the Third District. [A-12]. The court based its ruling on the fact that reasonable suspicion is not established by an anonymous tip which provides only innocent details, and upon investigation only the innocent details are verified. The court held that anonymous tips can provide the basis for reasonable suspicion only when it can be established that the tip is reliable. Reliability of an anonymous tip can be established when the tip describes suspicious details concerning conduct that is presently occurring or is about to occur in the future and such conduct is verified by the police. Reliability of an
innocent details tip can be established if the tip predicts particular future action which is verified by the police. If an innocent details tip does not concern future action, then reasonable suspicion can be established by verification of a presently occurring innocent details tip coupled with an independent police investigation which would have to

uncover something more that just a verification of the innocent details. [A-4-9].

Based on the foregoing facts, the court held that stop and frisk was unreasonable because the police officer's independent investigation only corroborated the innocent details and did not establish that the suspect was engaging in suspicious behavior. The court then suggested that the police officer involved should have used a less intrusive means, such as a consensual encounter, to determine if the suspect was armed and dangerous before a frisk would have been justified. The court also suggested a more reasonable approach was to wait until some observable suspicious conduct took place in order to justify the frisk. The court based the foregoing holding on *Terry v. Ohio*, 392 U.S. 1, 88 S. Ct. 1868, 20 L. Ed. 2d 889 (1968) and held that to approve the instant stop and frisk would create a "firearm exception" to *Terry*, by requiring less than reasonable suspicion for a *Terry* stop in response to an anonymous tip which alleged that an individual is carrying a firearm. The court rejected the so called "firearm exception" because it was unwilling to carve out a new exception from the original exception recognized in *Terry*. [A-9-11].

The dissent found the majority's interpretation of *Terry* was overly restrictive and erroneous. The dissent found that an anonymous tip concerning an individual with an illegally concealed firearm presents a unique situation. When confronted with this situation, police officers may not be able to verify more than the innocent details of the tip without substantially risking their safety or the safety of the general public. If police officers are not allowed to stop and frisk such individual they must wait until the individual brandishes or uses the gun before they can act. This the dissent found was unreasonable because the additional suspicious circumstances that the majority required before the police may act will too often turn out to be the suspect's actual use of the unseen firearm. [A-24].

The dissent would have joined the majority of jurisdictions that have recognized a "firearm exception" to the general rule that the corroboration of only the innocent details of an anonymous tip does not provide police officers with reasonable suspicion of criminal

activity. Such a holding is necessary because the great risk of harm to the public and police in such a situation substantially outweighs the limited privacy intrusion to the suspect. The dissent believed such a holding is true to the dictates of *Terry* which does not require that the officer be absolutely certain that the individual is armed but rather whether a reasonably prudent person in the circumstances would be warranted in the belief that his safety or that of others was in danger. The dissent then found that it is clearly reasonable in today's society for law enforcement officers confronted with the circumstances in this case to conduct a stop and frisk. Therefore, the dissent would have affirmed the decision of the Third District. [A-19].

REASON FOR GRANTING THE WRIT

THE DECISION OF THE COURT BELOW THAT AN ANONYMOUS TIP CONTAINING INNOCENT DETAILS IN ADDITION TO THE FACT THAT THE SUSPECT WAS CARRYING A CONCEALED FIREARM WAS INSUFFICIENT TO PROVIDE REASONABLE SUSPICION TO STOP AND FRISK THE SUSPECT AFTER THE INNOCENT DETAILS WERE IMMEDIATELY VERIFIED CONFLICTS WITH DECISIONS OF THIS COURT, DECISIONS OF UNITED STATES COURTS OF APPEAL AND DECISIONS OF APPELLATE COURTS OF THE OTHER STATES.

In this case, the police received an anonymous tip that one of three young black males standing at a bus stop in front of a pawnshop at a specific and public location was carrying a concealed firearm. The tipster described the appearance of each of the young males and said that the individual with the gun was wearing a "plaid-looking" shirt. Officer Carmen Anderson, a police officer with more than fourteen years of experience, and another officer arrived at the scene only six minutes after receiving the anonymous complaint. The officers immediately verified the accuracy of all of the appearances and location information provided by the tipster. Respondent was standing by the bus stop with two other young black males and he was wearing a plaid shirt. Officer Anderson approached Respondent, asked him to put his hands above his head, and conducted a pat-down of his outer garments. Officer Anderson then seized a gun that she saw protruding from Respondent's left pocket. [A-40-42]. Respondent was taken into custody and charged with unlawfully carrying a concealed firearm and possession of a firearm by a minor under eighteen years of age. [A-19].

Based on the foregoing facts the Supreme Court of Florida held that the stop and frisk was unreasonable because the police officer's independent investigation only corroborated the innocent

details and did not establish that the suspect was engaging in suspicious behavior. The court then suggested that the police officer involved should have used a less intrusive means, such as a consensual encounter, to determine if the suspect was armed and dangerous before a frisk would have been justified. This Court also suggested a more reasonable approach was to wait until some observable suspicious conduct took place in order to justify the frisk. [A-8-9]. The court based the foregoing holding on *Terry v. Ohio*, 392 U.S. 1, 88 S. Ct. 1868, 20 L. Ed. 2d 889 (1968) and held that to approve the instant stop and frisk would create a "firearm exception" to *Terry*, by requiring less than reasonable suspicion for a *Terry* stop in response to an anonymous tip which alleged that an individual is carrying a firearm. The court adopted the minority view espoused in *Commonwealth v. Hawkins*, 692 A. 2d 1068 (Pa. 1997) and rejected the so called "firearm exception" because it was unwilling to carve out a new exception from the original exception recognized in *Terry*. [A-9-11].

The majority view, which was rejected by the Supreme Court of Florida, holds that when the police receive an anonymous tip alleging that a person is carrying a concealed weapon and only the innocent details of the tip are verifiable, the police may conduct an investigatory stop and frisk of the suspect. *See, e.g., United States v. Roberson*, 90 F. 3d 75 (3rd Cir. 1996) *United States v. DeBerry*, 76 F.3d 884 (7th Cir. 1996); *United States v. Gibson*, 64 F. 3d 617 (11th Cir. 1995); *United States v. Bold*, 19 F. 3d 99 (2nd Cir. 1994); *United States v. Clipper*, 973 F. 2d 944 (D.C. Cir. 1992); *United States v. McClinnhan*, 660 F. 2d 500 (D.C. Cir. 1981); *Speight v. United States*, 671 A. 2d 442 (D.C. 1996); *United States v. Johnson*, 540 A. 2d 1090 (D.C. 1988); *United States v. Mason*, 450 A. 2d 464 (D.C. 1982); *State v. Kuahuia*, 616 P. 2d 1374 (Haw. 1980); *People v. Smithers*, 415 N.E. 2d 327 (Ill. 1980); *Graham v. Commonwealth*, 667 S.W. 2d 697 (Ky. Ct. App. 1983); *State v. Jernigan*, 377 So. 2d 1222 (La. 1979); *State v. Hasenbank*, 425 A. 2d 1330 (Me. 1981); *Johnson v. State*, 439 A. 2d 607 (Md. Ct. Spec. App. 1982); *State in re H.B.*, 381 A. 2d 759 (N.J. 1977); *State v. Williams*, 598 A. 2d 1258 (N.J. Super. Ct. Law Div. 1991); *State v. Sharpless*, 715 A. 2d 733 (N.J. Super Ct. App. Div. 1998); *People v. McLaurin*, 374 N.E. 2d 614 (N.Y. 1978); *State v. Pulley*, 863 S.W. 2d 29 (Tenn. 1993);

State v. Franklin, 704 P. 2d 666 (Wash. Ct. App. 1985). This position is in consonance with the underlying rationale of *Terry*, which is to protect law enforcement officers and the general public from the dangers associated with armed suspects.

The majority view takes into account the unique situation that is presented by an anonymous tip concerning an individual with a concealed firearm. When confronted with this situation, police officers may not be able to verify more than the innocent details of the tip without substantially risking their safety or the safety of the general public. When faced with this situation the police officer must either stop and search the individual or wait until the individual brandishes or uses the gun. *United States v. Bold*, 19 F. 3d 99, 104 (2nd Cir. 1994). As the dissent herein recognized:

> To say that the officers in this case should have waited until this child did something more to arouse their suspicion is unreasonable. I fear that the "additional suspicious circumstances" required by the majority before the police may act will too often turn out to be the suspect's actual use of the unseen firearm. In light of the recent homicides committed by children, I suspect that the public's reaction to the majority's decision will be, "Where is your common sense?"

[A-24].

The dissent herein also agreed with the majority view point that this principle should only apply in this setting when only an illegally concealed firearm is the subject on the anonymous tip. *Roaden v. Kentucky*, 413 U.S. 496, 93 S. Ct. 2796, 37 L. Ed. 2d 757 (1973). In *United States v. Roberson*, 90 F. 3d 75 (3rd Cir. 1996) the Court refused to find that reasonable suspicion existed for an investigative stop when they received an innocent details tip giving a description of the suspect, a location and the fact the suspect is dealing illegal drugs. To hold otherwise, the court held, would be too great an intrusion on the rights of the people. In this situation the balance is weighed in the individual's favor since the safety of the officer or others is not at risk. Here it is entirely reasonable to require the police

officer to set up surveillance and wait for suspicious behavior to occur. Thus when an innocent details tip concerning drug dealing is involved, reasonable suspicion exists only when there is corroboration of information from which the police could reasonably conclude the anonymous tipster's allegation was reliable.

The majority view is within the mainstream of Fourth Amendment jurisprudence. The Fourth Amendment to the United States Constitution requires that a search be reasonable. The reasonableness of a search is a substantive determination made from the facts and circumstances of the case and in light of the fundamental criteria laid down by the Fourth Amendment and in opinions of the United States Supreme Court applying that amendment. *Ker v. California*, 374 U.S. 23, 83 S. Ct. 1623, 10 L. Ed. 2d 726 (1963). The standards of reasonableness required under the Fourth Amendment are not susceptible of Procrustean application. *Berger v. New York*, 388 U.S. 41, 87 S. Ct. 1873, 18 L. Ed. 2d 1040 (1967). The Fourth Amendment proscription against unreasonable searches and seizures is not to be read in a vacuum, and thus, a search and seizure reasonable as to one type of material in one setting may be unreasonable in a different setting or with respect to another kind of material. *Roaden v. Kentucky*, 413 U.S. 496, 93 S. Ct. 2796, 37 L. Ed. 2d 757 (1973).

This Court in *Terry*, recognized the need for public safety and created the stop and frisk doctrine. The doctrine permits a police officer to stop an individual in circumstances where the officer possesses reasonable suspicion that the individual is engaged in criminal activity. It also permits an officer to conduct a limited frisk of the individual if the officer possesses reasonable suspicion that the individual is armed and poses a threat to the officer or others.

The rationale of *Terry* is to protect law enforcement and the general public from the dangers associated with armed suspects. The Court stated this rationale as follows:

> [W]e cannot blind ourselves to the need for law enforcement officers to protect themselves and other prospective victims of violence in situations

> where they may lack probable cause for an arrest. When an officer is justified in believing that the individual whose suspicious behavior he is investigating at close range is armed and presently dangerous to the officer or to others, it would appear to be clearly unreasonable to deny the officer the power to take necessary measures to determine whether the person is in fact carrying a weapon and to neutralize the threat of physical harm.

Id., 392 U.S. at 24. In formulating the reasonable suspicion test, the Court balanced the privacy interests of citizens with the safety of officers and the public. After properly balancing these interests the Court reached the following conclusion:

> Our evaluation of the proper balance that has to be struck in this type of case leads us to conclude that there must be a narrowly drawn authority to permit a reasonable search for weapons for the protection of the police officer, where he has reason to believe that he is dealing with an armed and dangerous individual, regardless of whether he has probable cause to arrest the individual for a crime.

Id., 392 U.S. at 27.

Terry's stop and frisk doctrine, just like the Fourth Amendment from which it derived from, is not susceptible of Procrustean application. In *United States v. Sokolow*, 490 U.S. 1, 109 S. Ct. 1581, 104 L. Ed. 2d 1 (1990), the Court rejected, in an airport drug smuggling scenario, a rigid and arbitrary application of *Terry*. In *Sokolow* the defendant was stopped upon his arrival at Honolulu International Airport. He was stopped based on the following facts: (1) he paid $2,100 for two airplane tickets from a roll of $20 Bills; (2) he traveled under a name that did not match the name under which his telephone was listed; (3) his original destination was Miami, a source city for illicit drugs; (4) he stayed in Miami for only 48 hours, even though a round-trip flight from Honolulu to Miami takes 20 hours; (5) he appeared nervous during his trip; and (6) he checked none of his

luggage. The Court found, even though these factors in and of themselves was not proof of any illegal conduct and were quite consistent with innocent travel, that defendant's stop was lawful. In holding that innocent conduct can support a stop and frisk, the Court recognized that "*Terry* itself involved 'a series of acts, each of them perhaps innocent' if viewed separately, 'but which taken together warranted further investigation.'" *Id.* at 10-11. The Court then held that the following principle applies equally to the reasonable suspicion inquiry:

> [T]hat "innocent behavior will frequently provide the basis for a showing of probable cause," and that "[i]n making a determination of probable cause the relevant inquiry is not whether particular conduct is 'innocent' or 'guilty,' but the degree of suspicion that attaches to particular types of noncriminal acts."

Id., 490 U.S. at 11.

Based on the foregoing opinions of the Court applying the Fourth Amendment, it is clear that stop and frisk in the instant case was lawful. After the innocent details of the tip were immediately verified, reasonable suspicion existed to conduct a further investigation. Thus, the officer armed with the tip that one of the youths was carrying a firearm had authority, for the officer's protection, to frisk him for the firearm.

The majority opinion rejected this interpretation by finding that the totality of the circumstances did not provide the officer with reasonable suspicion to further investigate whether criminal activity was afoot. The majority based this holding on the following grounds: (1) the anonymous tip was unreliable because it did not involve suspicious behavior which the police could have verified as suspicious upon arrival at the scene; (2) the innocent details provided in the tip did not involve future action for which the police could verify whether or not such future action would occur: and, (3) the presently occurring innocent detail tip was not corroborated through an independent investigation on the part of the police which established that the suspect was engaging in suspicious behavior.

The majority's decision adopted the minority viewpoint nationwide which has only been adopted by Pennsylvania in *Commonwealth v. Hawkins*, 692 A. 2d 1068 (Pa. 1997) and Massachusetts in *Commonwealth v. Alvarado*, 667 N.E. 2d 858 (Mass. 1996). The foregoing decisions, which were decided pursuant to the respective state constitutions, are grounded on the fact that it is not illegal to carry a licensed gun. Thus, a police officer who receives an anonymous tip that a person is carrying a concealed firearm without more does not equate to a reasonable suspicion that the person has been, is, or will be engaged in criminal activity and therefore is not warranted in making an investigatory stop.

The majority also suggested that the officer use the less intrusive alternatives of a consensual encounter or waiting until the firearm was brandished to determine if the youths were engaged in criminal activity or were armed and dangerous. This is also an incorrect interpretation of Fourth Amendment jurisprudence. The reasonableness of an officer's decision to stop a suspect does not turn on the availability of less intrusive investigatory technique. Such a rule would unduly hamper the police's ability to make swift, on the spot decisions and it would require courts to indulge in unrealistic second-guessing. *United States v. Montoya de Hernandez*, 473 U.S. 531, 105 S. Ct. 3304, 87 L. Ed. 2d 351 (1983).

The majority was also concerned with the potential abuse of anonymous tipster for giving police false information in order to harass individuals for personal reasons. As the Eleventh Circuit in *United States v. Gibson*, 64 F. 3d 617 (11th Cir. 1995) noted such concern does not provide reasonable grounds to hold reasonable suspicion does not exist under the instant facts. The court noted that Florida provides a significant deterrent against reporting false information to law enforcement agencies and officers by making such acts punishable by law. Specifically § 365.171 (16), Florida Statutes (1997) makes it a first degree misdemeanor to makes false "911" calls and § 817.49, Florida Statutes (1997) makes it a first degree misdemeanor for making false reports of commission of crimes to law enforcement officers.

The result reached by the Supreme Court of Florida is in direct conflict with the opinions of this Court which apply the Fourth Amendment, specifically *Terry v Ohio*, 392 U.S. 1 (1968) and *United States v. Sokolow*, 490 U.S. 1, 109 S. Ct. 1581, 104 L. Ed. 2d 1 (1990). Considering the totality of the circumstances in this case, including the limited ability of the officer to confirm all of the anonymous tip information, the report that one of the individuals possessed a gun and the statistical likelihood that the gun was illegal, the intrusion upon the privacy of the Respondent was minimal and the oficer's had a reasonable suspicion under *Terry* to stop and frisk the respondent. To hold otherwise and require police, in situations as were involved herein, to wait for the brandishment or use of the firearm before finding reasonable suspicion would effectively negate the *Terry* doctrine. Besides the instant decision, only the Pennsylvania and Massachusetts Supreme Courts have applied Terry so restrictively. Present split in authority will only continue to widen without guidance from this Court, and therefore this case warrants consideration by this Court.

CONCLUSION

Based on the foregoing reasons, the Petitioner, the State of Florida, respectfully requests that this Court grant its Petition for Writ of Certiorari to the Supreme Court of Florida and summarily reverse the Supreme Court of Florida based on the authorities herein cited .

Respectfully submitted,
ROBERT A. BUTTERWORTH
Attorney General

MICHAEL J. NEIMAND
Assistant Attorney General
Florida Bar No. 0239437
Office of the Attorney General
110 S.E. 6th Street - 9th Floor
Ft. Lauderdale, Florida 3330
(954) 712-4600

CASE NO.
IN THE UNITED STATES SUPREME COURT
October Term 1998

THE STATE OF FLORIDA,
Petitioner,

vs.

J.L., a juvenile,
Respondent.

APPENDIX TO PETITION FOR WRIT OF CERTIORARI

Opinion, J.L. v. State, Supreme Court of Florida, December 17,1998 . . . . . A-1

Order Denying Rehearing, March 9, 1999 . . . . . A-29

Opinion, J.L. v. State, District Court of Appeal of Florida, Third District, February 12, 1997 . . . . . A-31

Order Granting Motion to Suppress, Circuit Court of the 11th Judicial Circuit of the State of Florida in and for Miami Dade County Dated April 11,1996 . . . . . A-35

Excerpt from the evidentiary hearing on Respondent's Motion to Suppress A-36

Supreme Court of Florida

No. 90,361

J.L., a juvenile,
Petitioner,

vs.

STATE OF FLORIDA,
Respondent.

No. 90,361
[December 17, 1998]

PER CURIAM.

We have for review State v. J.L., 689 So. 2d 1116 (Fla. 3d DCA 1997), which expressly and directly conflicts with Butts v. State, 644 So. 2d 605 (Fla. 1st DCA 1994). We have jurisdiction pursuant to article V, section 3(b)(3) of the Florida Constitution. For the reasons expressed below, we decline the State's invitation to create a firearm or weapons exception[1] to

---

[1] The procedure employed by the police in this case is not permissible under the current law. It would only be permissible if this Court were to recognize an exception to the current law.

the limitations on searches and seizures set out in the Fourth Amendment to the United States Constitution and the parallel provisions of the Florida Constitution.

The facts and issues in this case and Butts are similar in nature. Both cases involve an anonymous telephone tip and the issue of whether the police possessed the necessary reasonable grounds to stop and frisk a citizen based solely upon the anonymous tip.

In this case, the police received an anonymous tip stating that several young black males were standing at a specified bus stop during the daylight hours. The anonymous informant stated only that one of the individuals, the one wearing the "plaid-looking" shirt, was carrying a gun. Two police officers arrived at the specified bus stop approximately six minutes after receiving the anonymous tip and observed three black males, one of whom was wearing a plaid shirt. The three males were engaged in no suspicious or illegal conduct and no additional suspicious circumstances were observed by the officers. One of the officers immediately accosted J.L., who was wearing a plaid shirt, and ordered him to put his hands above his head. Then, without questioning or other introduction, the officer proceeded to frisk J.L. and seized a gun from J.L.'s left pocket. At the same time, the second officer, again without discussion, frisked the other two individuals. At trial, J.L.'s motion to suppress the gun was granted. On appeal, the Third District Court of Appeal reversed and held that the police had a reasonable suspicion that J.L. was carrying a concealed weapon. See J.L., 689 So. 2d at 1117. The district court reasoned that the investigatory stop and frisk was justified because the surrounding circumstances indicated to the officers that the anonymous tip was reliable. See id.

In Butts, the police received an anonymous tip describing the appearance and location of a man on a bicycle who was said to be carrying a concealed gun and possibly selling drugs. The officers responded to the tip and observed Butts, who matched the description provided by the informant, riding a bicycle in the location described by the informant. The officers stopped Butts after a brief chase and detained him. The officers observed a gun in Butts' pocket and seized it. The officers frisked Butts and seized packets of cocaine and heroin. At trial, Butts' motion to suppress the gun and drugs was denied. On appeal, the First District Court of Appeal held that the anonymous tip was not sufficiently reliable because it lacked specificity and the officers failed to independently corroborate significant aspects of the tip. See Butts v. State, 644 So. 2d at 606. Specifically, the district court found that the tip failed to provide predictions regarding Butts' future movements or activities and that the police officers only verified the innocent and nonincriminating details of the tip. See id. In addition to the First District in Butts, the Fourth District has held that verification of an anonymous tip, by itself, is insufficient to justify a stop and frisk. See Pinkney v. State, 666 So. 2d 590 (Fla. 4th DCA 1996).

In this case, J.L. asserts that the police officers did not have the requisite reasonable suspicion to justify a stop and frisk and that consequently the seizure of the firearm was unconstitutional. J.L. notes that the anonymous tip included no predictive qualities and that the officers only verified the innocent details of the tip.

We begin our analysis by noting that one of the cornerstones of this nation's foundation is the constitutional protection that individuals have a right to be free from unreasonable searches and seizures. See U.S. Const. amend.

IV. The decision of the district court in J.L. seriously infringes upon this defining right.

The law is well established that a police officer may, in appropriate circumstances, stop a person for the purpose of investigating possible criminal behavior, even though there is no probable cause for an arrest, as long as the officer has reasonable suspicion that the person is engaged in criminal activity. See Terry v. Ohio, 392 U.S. 1, 19-23 (1968). The circumstances may even require a frisk of the person to determine whether the person is carrying a weapon, if the police officer has a reasonable suspicion that the person is armed and poses a threat to the officer or others. See id. at 27. However, when the police act on the information of an informant, the reliability of that information must be established before a citizen can be stopped and frisked.

Anonymous tips are generally less reliable than tips provided by known informants who have previously provided information to the police in the past, see Adams v. Williams, 407 U.S. 143, 146-47 (1972), or face-to-face informants, see United States v. Salazar, 945 F.2d 47, 50-51 (2d Cir. 1991). Tips from known reliable informants, such as an identifiable citizen who observes criminal conduct and reports it, along with his own identity to the police, will almost invariably be found sufficient to justify police action. In contrast, anonymous tips must be closely scrutinized. "[A]n anonymous tip alone seldom demonstrates the informant's basis of knowledge or veracity inasmuch as ordinary citizens generally do not provide extensive recitations of the basis of their everyday observations and given that the veracity of persons supplying anonymous tips is 'by hypothesis largely unknown, and unknowable.'" Alabama v. White, 496 U.S. 325, 329 (1990) (quoting Illinois v. Gates, 462 U.S. 213, 237 (1983)).

However, an anonymous tip can provide the basis for reasonable suspicion, provided that it can be established that the tip is reliable. See White, 496 U.S. at 332. A tip's reliability can be established in a number of different ways. A tip may describe suspicious details concerning conduct that is presently occurring or is about to occur in the future (i.e., a call received after midnight, on a warm summer evening, stating, "A person is carrying a gun; that person is wearing a ski mask and a long trench coat and is approaching a convenience store."). Verification by the police of the suspicious details clearly provides the police with the requisite reasonable suspicion to make a Terry stop.

The more difficult case involves those tips which allege criminal conduct, but only describe "innocent details of identification," for which the details in and of themselves are in no way incriminating or indicative of criminal behavior. Butts, 644 So. 2d at 606 (quoting Robinson v. State, 556 So. 2d 450, 452 (Fla. 1st DCA 1990)). Innocent detail tips merely provide the police with verifiable details which are completely innocent in nature (i.e., a tip similar to the one in this case, which only describes innocuous clothing, location, etc.). Nevertheless, innocent detail tips can still prove to be reliable and be the foundation for reasonable suspicion. See United States v. Walker, 7 F.3d 26, 31 (2d Cir. 1993). For instance, a tip can predict particular actions which will occur in the future. Future predictions can establish that the tip is reliable if the tip "contain[s] a range of details relating not just to easily obtained facts and conditions existing at the time of the tip, but to future actions of third parties ordinarily not easily predicted." White, 496 U.S. at 332 (quoting Gates 462 U.S. at 245). "[I]ndependent corroboration by the police of significant aspects of the informer's predictions [can] impart[] some degree of reliability to the other allegations made by the caller." Id. If the actions do occur as the informant predicted,

and the actions involve matters to which a normal person would not be privy, this demonstrates that the informant has a "special familiarity with the [suspect's] affairs," beyond the knowledge that a normal person would possess. Id.

Reasonable suspicion can be established by verification of a presently-occurring innocent detail tip coupled with an independent police investigation. See generally United States v. Bold, 19 F.3d 99, 103 (2d Cir. 1994). But for these types of tips (presently-occurring innocent detail tips), the independent police investigation would have to uncover something more than just a verification of the innocent details. The police must observe additional suspicious circumstances as a result of the independent investigation. See White, 496 U.S. at 329 ("Some tips, completely lacking in indicia of reliability, would either warrant no police response or require further investigation before a forcible stop of the suspect would be authorized."). Judge Allen's opinion in Butts provides the correct framework for analysis:

> An anonymous tip can provide the basis for an investigatory stop when the tip, as corroborated by independent police work, exhibits sufficient indicia of reliability to furnish police with a reasonable suspicion that the defendant is engaged in criminal activity. Alabama v. White, 496 U.S. 325, 110 S.Ct. 2412, 110 L.Ed.2d 301 (1990). The "totality of the circumstances" test is used to determine the requisite level of suspicion. Id. The reliability of an anonymous tipster's information is evaluated in part on its degree of specificity and in part on the independent corroboration of significant aspects of the informant's

> predictions. Swanson v. State, 591 So.2d 1114, 1116 (Fla. 1st DCA 1992).

644 So 2d at 606.

The State argues that the tip in the present case is reliable. We disagree. Initially, we must observe that the essential issue presented here would be the same whether the anonymous tip involved three white males in business suits waiting for a taxi, or three white females waiting for a ride to a certain location. The officers received an anonymous tip that a young man was carrying a concealed weapon. The tip disclosed that the young man was standing by a bus stop at a specific location and that he was wearing a plaid-looking shirt. The reliability of this tip was not proven by any of the previously described ways recognized as sufficient in our case law. The tip did not involve suspicious behavior which the police could have verified as suspicious upon arrival; rather the tip involved innocent details, none of which involved incriminating or criminal behavior.

Further, the innocent details provided in the tip did not involve future action for which the police could verify whether or not such future action would occur; rather the tip involved present action which could have been provided by "any pilgrim on the roadway." Butts, 644 So. 2d at 606 (quoting Robinson, 556 So. 2d at 452). Finally, the presently-occurring innocent detail tip was not corroborated through an independent investigation on the part of the police which established that the suspect was engaging in suspicious behavior; rather, "the officers' independent investigation added nothing to the reliability of the tip"--the officers merely verified that the defendant was in fact standing by the bus stop and wearing a plaid shirt, neither of which is suspicious. Butts, 644 So. 2d at 606. Based on this record, we are unable to conclude that this

tip exhibited "sufficient 'indicia of reliability'" to furnish the police with the necessary reasonable suspicion to make a Terry stop and frisk. White, 496 U.S. at 328 (quoting Adams v. Williams, 407 U.S. 143, 147 (1972)).[2]

The officers in the present case merely arrived at the scene and confirmed that a male was wearing a plaid-looking shirt and standing by a bus stop. There is nothing suspicious about either of these details. Further, the officers did not observe anything suspicious about the suspect prior to performing the Terry stop. The officers' actions are also called into serious question by the fact that the officers frisked all three individuals standing near the bus stop, not just the individual wearing the plaid shirt. Under the totality of the circumstances, we are unable to conclude that the officers had

[2] The district court in J.L. cited to Bold to support its holding. However, Bold is distinguished from the present case. In Bold, the police received a tip that a twenty-one year old black male was carrying a gun. The informant alleged that the suspect was in a four-door gray Cadillac parked outside of a particular White Castle restaurant. The police verified the details of the tip and conducted an independent investigation, which revealed additional suspicious details that were separate and distinct from the details provided by the tip. When the police arrived, they noticed that the car was located in a remote part of the parking lot. One of the officers testified that the location of the car "raised [his] suspicion that [the people in the car] might be having something to hide." Bold, 19 F.3d at 103. Further, the officers were unable to look into the car to further verify the tip because the windows of the car were darkly tinted. Another officer testified that the window tinting "aroused [his] caution level." Id. at 100-01. The Second Circuit Court of Appeals concluded that "the anonymous tip in this case did not itself provide information from which to conclude that the caller was honest or his information reliable." Id. at 103. Thus, the police did not obtain the necessary reasonable suspicion to justify the Terry stop until the officers personally perceived the suspicious circumstances as a result of their own independent investigation. The actions of the police officers in the present case cannot be considered the equivalent of the independent investigation that took place in Bold.

reasonable suspicion to stop and detain the three people at the bus stop and conduct a frisk in this case. Of course, there was nothing to prevent the police from engaging in a consensual encounter with the trio or from questioning them concerning their possession of a weapon as reported in the anonymous tip. However, the officers' forcible actions in response to the anonymous tip were an active intervention into an otherwise peaceful situation and did not warrant a frisk until some observable suspicious conduct took place. Therefore, we agree with the trial court that the evidence recovered as a result of the impermissible stop and frisk should have been suppressed.

We are aware that other jurisdictions appear to recognize a "firearm exception"[3] to the reasonable suspicion test. See United States v. DeBerry, 76 F.3d 884 (7th Cir. 1996) (holding that evidence is admissible based on mere verification of a presently-occurring innocent detail tip); United

[3] Often, carving out exceptions to constitutional principles can lead one to the top of a "slippery slope." In Terry, the United States Supreme Court recognized a limited exception to the probable cause requirement. The Supreme Court reasoned:

> [T]here must be a narrowly drawn authority to permit a reasonable search for weapons for the protection of the police officer, where he has a reason to believe that he is dealing with an armed and dangerous individual, regardless of whether he has probable cause to arrest the individual for a crime.

Terry v. Ohio, 392 U.S. 1, 27 (1968) (emphasis added).

Those jurisdiction recognizing a "firearm exception" are in essence carving out an exception to an exception, by requiring less than reasonable suspicion for a Terry stop in response to an anonymous tip which alleges that an individual is carrying a firearm. We are unwilling to carve out this new exception from the original exception recognized in Terry.

States v. Clipper, 973 F.2d 944 (D.C. Cir. 1992) (same).[4] We join the Supreme Court of Pennsylvania in rejecting this exception:

> The Commonwealth takes the radical position that police have a duty to stop and frisk when they receive information from any source that a suspect has a gun. Since it is not illegal to carry a licensed gun in Pennsylvania, it is difficult to see where this shocking idea originates, notwithstanding the Commonwealth's fanciful and histrionic references to maniacs who may spray schoolyards with gunfire and assassins of public figures who may otherwise go undetected. Even if the Constitution of Pennsylvania would permit such invasive police activity as the Commonwealth proposes--which it does not--such activity seems more likely to endanger than to protect the public. Unnecessary police intervention, by definition, produces the possibility of conflict where none need exist.

Commonwealth v. Hawkins, 692 A.2d 1068, 1071 (Pa. 1997). In Florida, it is generally not illegal to possess a firearm. See

---

[4] Allowing a "firearm exception" opens the door for potential abuse. For instance, what if a firearm tip proved to be unreliable, and instead of finding a weapon, the police officers discover illegal drugs? We have concerns that this scenario might subject a person to prosecution for possession of illegal drugs. See United States v. Clipper, 973 F.2d 944 (D.C. Cir. 1992) (holding that drug evidence obtained as a result of the "firearm exception" stop and frisk was admissible, despite the fact that the tip was incorrect in the assertion that the suspect was carrying a gun). It will be difficult to determine where the line should be drawn if such an exception is permitted.

generally ch. 790, Fla. Stat. (1997). Additionally, Florida provides that individuals are permitted to carry concealed weapons with a proper license. See § 790.06, Fla. Stat. (1997). There are even certain situations (not involved here) where juveniles are permitted to possess firearms. See § 790.22, Fla. Stat. (1997).

For the reasons stated herein, we determine that there is no firearm or weapons exception to the Fourth Amendment and the bare-boned anonymous tip involved herein, by itself, did not provide the police with sufficient cause to stop and frisk.

We recognize that in State v. Webb, 398 So. 2d 820 (Fla. 1981), this Court held that the anonymous information contained in a police BOLO (be on the lookout) bore sufficient indicia of reliability, therefore justifying a stop and frisk. We find that Webb is distinguished from the present case. In Webb, the BOLO was pursuant to an investigation regarding alleged crimes that had already occurred on the previous two days. The suspect matching the BOLO was apprehended in the vicinity of the crime scene, providing further support that the person apprehended was in fact the perpetrator of the crimes. These two factors considered together provided the police with the necessary suspicion to make the stop. These circumstances are in contrast to the facts of the present case, where the police were not investigating a crime that had previously taken place.

In the present case, the Third District relied on this Court's previous decision in Hetland v. State, 387 So. 2d 963 (Fla. 1980). In Hetland, this Court held that an anonymous tip can provide the basis for a valid stop if the tip carries sufficient indicia of reliability. We reaffirm this holding in today's decision. However, we find that a mere detailed description of

a person's clothing and location, by itself, is not enough to sufficiently establish a tip's indicia of reliability.

Accordingly, we quash the decision under review. We approve the opinion of the First District Court of Appeal in Butts.

It is so ordered.

SHAW, KOGAN and ANSTEAD, JJ., concur.

HARDING, C.J., concurs with an opinion, in which KOGAN and ANSTEAD, JJ., concur.

OVERTON, J., dissents with an opinion, in which WELLS, J., concurs.

WELLS, J., dissents with an opinion.

NOT FINAL UNTIL TIME EXPIRES TO FILE REHEARING MOTION, AND IF FILED, DETERMINED.

HARDING, C.J., concurring.

I concur with the majority. I write to emphasize that the solution to this country's firearm epidemic cannot come at the expense of the principles set forth in the federal Constitution. I am aware that our streets and school grounds[5] have become

---

[5] The result of the present case might have been different had the frisk been conducted by a school official on school grounds. See Vernonia School Dist. 47J v. Acton, 515 U.S. 646, 656 (1995) ("Fourth Amendment rights . . . are different in public schools than elsewhere . . . ."); New Jersey v. T.L.O., 469 U.S. 325, 341 (1985) ("[T]he legality of a search of a student should depend simply on the reasonableness, under all the circumstances, of the search.").

venues of public violence, resulting in large part to the availability and accessibility of firearms. The United States Supreme Court recognized the need for public safety in Terry v. Ohio, 392 U.S. 1 (1968), the case which created the stop and frisk doctrine.[6] While Terry did not deal with an anonymous tip relating to a firearm, it did address the balancing of safety and the constitutional protection provided by the Fourth Amendment. A review of Terry leads me to conclude that the Supreme Court would require more than a mere anonymous tip before a police intrusion would be authorized by the Fourth Amendment.

This point is exemplified by a careful analysis of the Supreme Court's language in Terry. The setting in Terry involved "on-the-spot observations of the officer on the beat." Id. at 20. The Supreme Court clearly set out the test for determining when such limited intrusions may take place:

> [I]t is imperative that the facts be judged against an objective standard: would the facts available to the officer at the moment of the seizure or the search "warrant a man of reasonable caution in the belief" that the action taken was appropriate? Anything less would invite intrusion upon constitutionally guaranteed rights based on nothing more substantial than inarticulate hunches, a result this Court has consistently refused to sanction. And simple "'good faith on the part of the arresting officer is not enough.'

---

[6] In Terry, the Supreme Court held that a police officer is permitted to stop an individual in circumstances where the officer possesses reasonable suspicion that the individual is engaged in criminal activity. 392 U.S. at 19-23. An officer is also permitted to conduct a limited frisk of the individual if the officer possesses reasonable suspicion that the individual is armed and poses a threat to the officer or others. Id.

> . . . If subjective good faith alone were the test, the protections of the Fourth Amendment would evaporate, and the people would be 'secure in their persons, houses, papers and effects' only in the discretion of the police."
>
> . . . .
>
> . . . The officer need not be absolutely certain that the individual is armed; the issue is whether a reasonably prudent man in the circumstances would be warranted in the belief that his safety or that of others was in danger. And in determining whether the officer acted reasonably in such circumstances, due weight must be given, not to his inchoate and unparticularized suspicion or "hunch," but to the specific reasonable inferences which he is entitled to draw from the facts in light of his experience.

Id. at 21-22, 27 (emphasis added) (citations omitted). Applying this language to the facts of the present case, it becomes obvious that the information provided in the anonymous tip in question was the equivalent of an "inchoate and unparticularized suspicion or hunch," which in and of itself is insufficient to justify police intrusion. Thus, if the language of Terry, and indeed the Fourth Amendment, is to have any meaning, the evidence in the present case must be suppressed. A contrary result would lead to the "evaporation" of the constitutional rights of the Fourth Amendment.

It seems that the main concern of the dissenting justices is the ease with which individuals are able to access weapons, a concern which is well founded. However, the right to bear arms is not the issue in the present case; rather, we are

concerned with the right to be free from unreasonable searches and seizures. The effect of allowing a "firearms exception" would be the equivalent of saying that there are no unreasonable searches and seizures, and thus no Fourth Amendment rights, so long as the anonymous informant uses the magic word "firearm." To allow such an exception would threaten the basic protections of this nation's Constitution.[7]

KOGAN and ANSTEAD, JJ., concur.

OVERTON, J., dissenting.

The possession without authority of a concealed firearm by any individual in a public place or at a public event is a prescription for disaster, but the possession of a concealed firearm by a child is an especially dangerous and explosive situation. In deciding not to allow the stop and frisk in this case, the majority fails to follow the clear controlling precedent of this Court, and in addition expresses a holding contrary to the view of the overwhelming majority of jurisdictions that have considered the issue. In my view, the majority also makes a poor public policy decision that is dictated neither by the law

---

[7] In his dissent, Justice Overton refers to the frisk as a "minimal privacy intrusion." To the contrary, as noted by the United States Supreme Court in Terry:

> [I]t is simply fantastic to urge that [a frisk] performed in public by a policeman while the citizen stands helpless, perhaps facing a wall with hands raised, is a "petty indignity." It is a serious intrusion upon the sanctity of the person, which may inflict great indignity and arouse strong resentment, and is not to be undertaken lightly.

Terry, 392 U.S. at 16-17 (footnote omitted).

Justice Overton also focuses on the fact the defendant in the present case is a juvenile. It is important to point out that the "firearm exception" would apply to all citizens, not just juveniles.

nor by common sense. The majority decision is not only bad policy--I believe it threatens the physical safety of the law enforcement officers and citizens of this state. What must be remembered is that the Florida and United States constitutions protect against "unreasonable searches and seizures." Under the circumstances of this case, stopping and frisking this child and seizing the concealed weapon is not unreasonable.

The unfortunate reality of today's society is that dangerous persons of all ages stand armed and ready to shoot law enforcement officers and citizens. I am unable to ignore the daily headlines of our nation's newspapers and the statistics compiled by law enforcement agencies that reveal the great risk of harm posed by firearms in this country. According to the Uniform Crime Reports published by the Federal Bureau of Investigation, firearms claimed the lives of 92% of the 696 law enforcement officers killed in the line of duty from 1987 through 1996. Of those murders committed with firearms, 71% involved handguns--weapons that are easily concealed. Recent events have tragically demonstrated that children, such as the petitioner, and guns are an especially explosive mixture.[8] The violence involving firearms at our nation's schools is a

[8]Violent crime committed by juveniles continues to rise. FBI statistics presented to the United States House of Representatives show that the number of juveniles charged with murder increased 104 % from 1970 through 1992. 144 Cong. Rec. H226-27 (daily ed. Feb 3, 1998) (statement of Mr. Kingston). The number of juveniles arrested on weapons offenses has more than doubled over the past ten years. From 1965 through 1992, the number of twelve-year-olds arrested for violent crime rose 211 %; the number of thirteen and fourteen-year-olds arrested for such crime rose 301 %; and the number of fifteen-year-olds arrested for such crime rose 297 %. 143 Cong. Rec. H2,313-14 (daily ed. May 7, 1997) (statement of Mr. Solomon).

problem of major significance.[9] Unfortunately, the majority has virtually ignored the great harm caused by firearms and has lost sight of the fact that the rationale of Terry v. Ohio, 392 U.S. 1 (1968), is to protect law enforcement officers and the general public from the dangers associated with armed suspects.[10] It has also lost sight of a common sense definition of the term "unreasonable." The majority has acknowledged that the United States Supreme Court, in formulating the "reasonable suspicion" test under Terry, balanced the privacy interests of citizens with the safety interests of police officers and the public.[11] With respect to the circumstances presented

[9]Over the past two years, children as young as eleven years of age have shot classmates, teachers, and school administrators in cities such as Jonesboro, Arkansas; Bethel, Alaska; Olivehurst, California; Grayson, Kentucky; West Paducah, Kentucky; Pearl, Mississippi; Springfield, Oregon; Edinboro, Pennsylvania; Fayetteville, Tennessee; and Moses Lake, Washington. Undoubtedly, by the time this opinion is published, the list of cities where schoolyard homicides have occurred will have grown.

[10]In Terry, the Supreme Court wrote as follows:

> [W]e cannot blind ourselves to the need for law enforcement officers to protect themselves and other prospective victims of violence in situations where they may lack probable cause for an arrest. When an officer is justified in believing that the individual whose suspicious behavior he is investigating at close range is armed and presently dangerous to the officer or to others, it would appear to be clearly unreasonable to deny the officer the power to take necessary measures to determine whether the person is in fact carrying a weapon and to neutralize the threat of physical harm.

Terry, 392 U.S. at 24.

[11]The Supreme Court wrote as follows:

> Our evaluation of the proper balance that has to be struck in this type of case leads us to conclude that there must be a narrowly drawn authority to permit a reasonable search for weapons for the

in this case, Judge Posner of the Seventh Circuit Court of Appeals wrote that the balancing test involves "the right of the people to be let alone and their right to be protected from armed predators." United States v. DeBerry, 76 F.3d 884, 886 (7th Cir. 1996). I believe that a proper balancing of the interests demonstrates that the government's obligation to protect citizens and law enforcement personnel from violent crime substantially outweighs an individual citizen's interest against the limited privacy intrusion of a Terry stop and frisk. This Court is not the first to address this issue. I would follow the strong majority view and hold that when the police receive an anonymous tip alleging that a person is carrying an illegally concealed weapon and only the innocent details of the tip are verifiable, the police may conduct an investigatory stop and frisk of the suspect. See, e.g., United States v. DeBerry, 76 F.3d 884 (7th Cir. 1996); United States v. Clipper, 973 F.2d 944 (D.C. Cir. 1992); United States v. McClinnhan, 660 F.2d 500 (D.C. Cir. 1981); Speight v. United States, 671 A.2d 442 (D.C. 1996); United States v. Johnson, 540 A.2d 1090 (D.C. 1988); United States v. Mason, 450 A.2d 464 (D.C. 1982); State v. Webb, 398 So. 2d 820 (Fla. 1981); Hetland v. State, 387 So. 2d 963 (Fla. 1980); State v. Kuahuia, 616 P.2d 1374 (Haw. 1980); People v. Smithers, 415 N.E.2d 327 (Ill. 1980); Graham v. Commonwealth, 667 S.W.2d 697 (Ky. Ct. App. 1983); State v. Jernigan, 377 So. 2d 1222 (La. 1979); State v. Hasenbank, 425 A.2d 1330 (Me. 1981); Johnson v. State, 439 A.2d 607 (Md. Ct. Spec. App. 1982); Commonwealth v. Stoute, 665 N.E.2d 93 (Mass. 1996); Commonwealth v. McCauley, 419 N.E.2d 1072 (Mass. App. Ct. 1981); State in re H.B., 381 A.2d 759 (N.J. 1977); State v. Williams, 598 A.2d 1258 (N.J. Super. Ct. Law Div. 1991); People v. McLaurin, 374 N.E.2d 614 (N.Y. 1978); State v. Pulley, 863 S.W.2d 29 (Tenn. 1993); State v. Franklin, 704 P.2d 666 (Wash. Ct. App. 1985). Apparently, the only case that supports the majority's decision is Commonwealth v. Hawkins, 692 A.2d 1068 (Pa. 1997).

> protection of the police officer, where he has reason to believe that he is dealing with an armed and dangerous individual, regardless of whether he has probable cause to arrest the individual for a crime.

Terry, 392 U.S. at 27.

To more fully explain my position, it is necessary to restate part of the facts in this case. The police received an anonymous tip that one of three young black males standing at a bus stop in front of a pawnshop at a specific and public location was carrying a concealed firearm. The tipster described the appearance of each of the young males and said that the individual with the gun was wearing a "plaid-looking" shirt. Officer Carmen Anderson, a police officer with more than fourteen years of experience, and another officer arrived at the scene only six minutes after receiving the anonymous complaint. The officers immediately verified the accuracy of all of the appearance and location information provided by the tipster. J.L. was standing by the bus stop with two other young black males and he was wearing a plaid shirt. Officer Anderson approached J.L., asked him to put his hands above his head, and conducted a pat-down of his outer garments. Officer Anderson then seized a gun that she saw protruding from J.L.'s left pocket. J.L. was taken into custody and charged with unlawfully carrying a concealed firearm[12] and possession of a firearm by a minor under eighteen years of age.[13]

---

[12] § 790.01(2), Fla. Stat. (1995).

[13] § 790.22(3), Fla. Stat. (1995).

J.L.'s motion to suppress was granted by the trial court. The Third District Court of Appeal reversed, holding that the police had a reasonable suspicion that J.L. was carrying a concealed weapon. The district court stated that the investigatory stop and frisk was justified because the surrounding circumstances indicated to the officers that the anonymous tip was reliable. The district court noted that all of the information provided in the anonymous tip, except that relating to the concealed firearm, was verified by the police officers immediately upon their arrival at the scene. As to the inability of the police to verify the existence of the concealed firearm prior to the frisk, the district court stated that

> where a confirmed tip concerns an individual with a gun, the officer is faced with the choice of stopping and searching the individual, or waiting until the individual brandishes or uses the gun and the latter choice is unacceptable, thus leaving the stop and frisk as the only reasonable choice.

J.L., 689 So. 2d at 1118.

In reaching its decision, the district court appropriately relied upon this Court's decision in Hetland v. State, 387 So. 2d 963 (Fla. 1980), which expressly adopted the decision of the Second District Court of Appeal in State v. Hetland, 366 So. 2d 831 (Fla. 2d DCA 1979). In Hetland, the sheriff's deputies received an anonymous tip that Hetland was on his way to a local tavern to shoot someone. The tipster gave Hetland's description to the police and informed them that he was carrying a silver revolver. The deputies immediately proceeded to the tavern and identified Hetland sitting at the bar. "There was no commotion; all was quiet. [Hetland] was . . . sitting at the bar and there was nothing in his manner or actions which

was suspicious." Hetland, 366 So. 2d at 833 (emphasis added). One of the deputies asked Hetland to stand up. When Hetland complied, the deputy saw a gun protruding from Hetland's waistband. The weapon was seized and Hetland was arrested for carrying an illegally concealed firearm. The trial court suppressed the revolver as evidence. On appeal, the Second District Court of Appeal reversed, holding that the tip was sufficiently reliable to justify the investigatory detention and seizure. On review, this Court summarily approved of the decision of the district court and expressly adopted its opinion.

One year following our decision in Hetland, this Court again considered the issue of the validity of a stop and frisk based on an anonymous tip that concerned a concealed weapon. In State v. Webb, 398 So. 2d 820 (Fla. 1981), a bulletin was issued for the police to "be on the lookout" (BOLO) for a white male with specific physical features who was suspected of having committed two armed robberies on the two previous days. The BOLO was based on apparently anonymous information. The BOLO also provided that the suspect was carrying a black gun. Six hours after the BOLO was issued, the police saw Webb walking down a street approximately two miles from the scene of the robberies. Because Webb matched the description given in the BOLO, the officers conducted a stop and frisk of Webb and recovered a concealed firearm. Webb was arrested for carrying the concealed firearm. Webb was not charged with the robberies that he had been suspected of committing, but was charged with carrying an illegally concealed weapon. The trial court denied Webb's motion to suppress. On appeal, the district court reversed. This Court quashed the district court's decision, holding that the apparently anonymous information in the BOLO was specific and corroborated such that it bore sufficient indicia of reliability. In conclusion, we wrote as follows:

Under the totality of the circumstances, we hold that the stopping and the frisking of Webb was valid and that the trial court correctly denied the motion to suppress.

To hold otherwise would place in jeopardy the lives of police officers who have made a valid stop and who have reason to believe that the suspect is armed. As Justice Harlan stated in his concurring opinion in Terry v. Ohio, "[t]here is no reason why an officer, rightfully but forcibly confronting a person suspected of a serious crime, should have to ask one question and take the risk that the answer might be a bullet." 392 U.S. at 33, 88 S. Ct. at 1886. Upon the information known to the officers, failure to have stopped Webb would "have been poor police work indeed," Terry v. Ohio, 392 U.S. at 23, 88 S. Ct. at 1881, and failure to frisk could have cost the officers their lives.

Webb, 398 So. 2d at 826.

Hetland and Webb clearly control the issue presented in this case and demand the same result. This Court in Hetland upheld the stop and frisk on material facts that are virtually identical to the facts of the present case, and this Court in Webb upheld the stop and frisk on facts that are notably weaker than the facts of the present case. The attempts of the majority to distinguish Hetland and Webb from the present case are wholly unpersuasive, and I fear that the majority opinion will confuse the law enforcement officers and trial judges who must confront the circumstances presented in this case on a daily basis. If the present majority of this Court is dissatisfied with

the decisions of prior majorities of this Court, then it should say so, and recede from Hetland and Webb. I, of course, maintain that Hetland and Webb reached proper conclusions.

The law is clear that a police officer may make an investigatory stop of a citizen if the officer has a reasonable suspicion that the individual is committing or is about to commit a crime. Terry. The "totality of the circumstances" test is used to determine whether the investigatory stop was supported by the requisite reasonable suspicion. Alabama v. White, 496 U.S. 325 (1990). If the officer has a reasonable suspicion that the detained individual is armed and dangerous to the officer or others, a limited frisk for weapons may be conducted. Terry; Minnesota v. Dickerson, 508 U.S. 366 (1993). The United States Supreme Court has deemed such a stop and frisk to be a "limited intrusion." Adams v. Williams, 407 U.S. 143, 148 (1972)(emphasis added). Under appropriate circumstances, an anonymous tip may carry sufficient indicia of reliability to justify an investigatory stop and frisk. White, 496 U.S. at 328. The reliability of the anonymous tip is based in part on the specificity of the information provided and the ability of police officers to quickly and independently corroborate significant aspects of the information. White, 496 U.S. at 331-32. The corroboration of only the innocent details of an anonymous tip concerning certain illegal activities, such as the sale or possession of drugs, is insufficient to provide police officers with a reasonable suspicion of criminal activity. See Robinson v. State, 556 So. 2d 450 (Fla. 1st DCA 1990). However, as stated by Professor LaFave:

> It must be recognized that stoppings for investigation are not all of one kind and that in some instances the need for immediate action may be so great that substantial doubts about the reliability of the informant or his information

> cannot be permitted to stand in the way of prompt police action.

4 Wayne R. LaFave, Search and Seizure § 9.4(h), at 229 (3d ed. 1996).

An anonymous tip concerning an individual with an illegally concealed firearm presents a unique situation. When confronted with this situation, police officers may not be able to verify more than the innocent details of the tip without substantially risking their safety or the safety of the general public. As stated by the Second Circuit Court of Appeals:

> The unique dangers presented to law officers and law-abiding citizens by firearms are well chronicled." [United States v. Clipper, 973 F.2d 944, 949-51 (D.C. Cir. 1992)]. An officer who is able to corroborate other information in an anonymous tip that another person is in actual possession of a gun is faced with an "unappealing choice." United States v. McClinnhan, 660 F.2d 500, 502 (D.C. Cir. 1981). He must either stop and search the individual, or wait until the individual brandishes or uses the gun. Id. at 502-503.

United States v. Bold, 19 F.3d at 104. I fully agree. To say that the officers in this case should have waited until this child did something more to arouse their suspicion is unreasonable. I fear that the "additional suspicious circumstances" required by the majority before the police may act will too often turn out to be the suspect's actual use of the unseen firearm. In light of the recent homicides committed by children, I suspect that the public's reaction to the majority's decision will be, "Where is your common sense?"

I would do what the majority of jurisdictions have done and recognize a "firearm exception" to the general rule that the corroboration of only the innocent details of an anonymous tip does not provide police officers with a reasonable suspicion of criminal activity. In my view, this holding is necessary because the great risk of harm to the public and police in such a situation substantially outweighs the limited privacy intrusion to the suspect. Such a holding is true to the dictates of Terry. "The officer need not be absolutely certain that the individual is armed; the issue is whether a reasonably prudent [person] in the circumstances would be warranted in the belief that his safety or that of others was in danger." Terry, 392 U.S. at 27 (emphasis added). Clearly, it is reasonable in today's society for law enforcement officers confronted with the circumstances presented in this case to conduct a stop and frisk.

I strongly emphasize that this holding should apply only to investigatory stop and frisks supported by reliable anonymous tips regarding individuals possessing illegally concealed firearms. As explained by the United States Court of Appeals, District of Columbia Circuit, the distinction between an anonymous tip involving a firearm and a tip involving possession of other contraband, such as illegal drugs, is significant:

> Th[e] element of imminent danger distinguishes a gun tip from one involving possession of drugs. If there is any doubt about the reliability of an anonymous tip in the latter case, the police can limit their response to surveillance or engage in "controlled buys." Where guns are involved, however, there is the risk that an attempt to "wait out" the suspect might have fatal consequences.

United States v. Clipper, 973 F.2d at 951.

The anonymous tip in this case specifically described the appearance and location of a juvenile carrying a concealed firearm. The location was along a street where other members of the public were present. This fact raised the stakes for the officers because they had to worry about not only their own safety but also the safety of others nearby. The police officers, at least one of whom had substantial law enforcement experience, responded to the tip in a matter of minutes. The timing of their arrival ensured that the reported information was still fresh, thereby increasing the possibility that the officers would confront the suspect before any violence could occur and reducing the possibility that the officers would detain the wrong person. Upon arriving at the scene, the officers immediately verified all of the appearance and location information provided by the tipster. The only information the officers were unable to verify was J.L.'s actual possession of a concealed weapon. Officer Anderson conducted an investigatory stop and frisk of J.L. and seized a gun. This limited privacy intrusion was clearly reasonable and necessary for the protection of the officers and nearby members of the public. I would find that, under the totality of the circumstances, this anonymous tip concerning the illegal possession of a concealed firearm, corroborated by independent police work, justified the stop and frisk of J.L. Consequently, the seizure of the gun from J.L. would be valid. While the majority states that there is potential for abuse in recognizing a "firearms exception," I believe the potential for such abuse is minimal when compared to the harm that concealed firearms may cause to law enforcement and the general public. Accordingly, consistent with our decision in Hetland and Webb, and the decisions of the majority of jurisdictions that have considered the issue, I would approve the decision of the Third District Court of Appeal in this case

and disapprove Butts v. State, 644 So. 2d 605 (Fla. 1st DCA 1994).

WELLS, J., concurs.

WELLS, J., dissenting.

I join in the thorough and well-reasoned dissent of Justice Overton.

I write separately only to point out, contrary to the assertion of the concurring opinion, that my decision is not based upon a confusion between the right to bear arms and the right to be free from unreasonable searches and seizures. Rather, I conclude that to guard the constitutionally protected right to be free from unreasonable searches and seizures, this Court is not required to ignore the reality of what is happening daily in our country, our state, and in every local community of Florida.

The protection under scrutiny is against what is unreasonable. What is unreasonable has to be measured against what are the contemporary facts of life. I fault the majority because, in my judgment, it chooses to eliminate the word "unreasonable" from the Fourth Amendment. The majority's decision unnecessarily exposes many innocent residents of this state to severe harm from the violence of guns and without justification hinders law enforcement officers in their work to protect innocent residents. This simply does not have to be done to guard the Fourth Amendment.

Application for Review of the Decision of the District Court of Appeal - Direct Conflict of Decisions

Third District - Case No. 96-1860

Dade County

Bennett H. Brummer, Public Defender, and Harvey J. Sepler, Assistant Public Defender, Eleventh Judicial Circuit, Miami, Florida,

for Petitioner

Robert A. Butterworth, Attorney General, and Roberta G. Mandel and Mark Rosenblatt, Assistant Attorneys General, Miami, Florida,

for Respondent

Supreme Court of Florida

TUESDAY, MARCH 9, 1999

J.L., a juvenile,	*	
	*	
Petitioner,	*	
	*	CASE NO. 90,361
vs.	*	
	*	
STATE OF FLORIDA,	*	District Court of Appeal,
	*	3rd District - No. 96-1860
Respondent.	*	
	*	

* * *** * * * * * * * * * * *

Respondent's motion for rehearing is hereby denied.

HARDING, C.J., SHAW and ANSTEAD, JJ., and KOGAN, Senior-Justice, concur.

WELLS, J., and OVERTON, Senior Justice, dissent.

A True Copy

TEST:

TC

cc: Hon. Mary Cay Blanks, Clerk
Hon. Harvey Ruvin, Clerk
Hon. Steve Levine, Judge
Mr. Harvey J. Sepler

Sid J. White

Clerk, Supreme Court Ms. Roberta G. Mandel
Mr. Mark Rosenblatt

NOT FINAL UNTIL TIME EXPIRES
TO FILE REHEARING MOTION
AND, IF FILED, DISPOSED OF.

IN THE DISTRICT COURT OF APPEAL
OF FLORIDA
THIRD DISTRICT
JANUARY TERM, A.D. 1997

THE STATE OF FLORIDA, **

Appellant, **

vs. ** CASE NO. 96-1860

J.L., a juvenile, ** LOWER TRIBUNAL
CASE NO. 95-12143

Appellee. **

Opinion filed February 12, 1997.

An appeal from the Circuit Court of Dade County, Steve Levine, Judge.

Robert A. Butterworth, Attorney General, and Mark Rosenblatt, Assistant Attorney General, for appellant.

Bennett H. Brummer, Public Defender, and Harvey J. Sepler, Assistant Public Defender, for appellee.

Before SCHWARTZ, C.J., and COPE and FLETCHER, JJ.

FLETCHER, Judge

The State appeals the trial court's order suppressing evidence (a firearm) seized from J.L. prior to his arrest. We review the determination de novo, Ornelas v. United States, ___ U.S. ____, 116 S.Ct. 1657, 133 L.Ed.2d 911 (1996), and, finding that the seizure was based upon reasonable suspicion of criminal activity, reverse.

The police received an anonymous complaint that a concealed weapon violation was taking place. The complainant told the police that the person who had the gun was one of several young black males standing by a bus stop in front of a pawnshop at a specific location. The complainant gave a description of each of them, advising that the male with the gun was wearing a plaid-looking shirt.

The description and location information given by the anonymous complainant was verified when the police arrived at the described location only six minutes after receiving the complaint. As the police approached the bus stop they saw three young black males as described, one of whom (J.L.) was wearing a plaid-looking shirt. One officer immediately approached J.L., asked him to put his hands up on the bus stop, and began frisking him, at which time she saw the butt of a gun protruding from his left pocket. The officer removed the gun from the pocket and, together with another officer, took J.L. into custody.

The State contends that once the police corroborated the anonymous complainant's information describing the persons and location, there was a reasonable suspicion on the part of the police officers that J.L. was carrying a concealed weapon and thus the seizure was valid. J.L. contends, on the other hand, that the trial court correctly suppressed the gun obtained from

him by the warrantless search as the anonymous complaint was uncorroborated and he, J.L., had displayed no suspicious activity which might have supported the anonymous complaint.

We conclude that the police officers were justified in having a reasonable suspicion that J.L. was committing a crime -- carrying a concealed weapon -- and thus in stopping and frisking him. A valid stop and frisk may be based on information obtained from an anonymous complainant (or "tipster") if that information appears sufficiently reliable because of the surrounding circumstances or the nature of the information given in the tip itself. Hetland v. State, 387 So. 2d 963 (Fla. 1980). Here, all of the complainant's information was verified by the police within minutes. The only item remaining to be verified was the existence of a weapon concealed in J.L.'s pocket, and, obviously, that could not be verified by mere observation. The police officers thus found themselves in a situation in which they had a reasonable suspicion -- based on the extent of the verification -- that J.L. was carrying a concealed weapon and they had to take some action, but in doing so, they also had to secure their own safety. This the officer did by the warrantless frisk. As noted by the United States Court of Appeals, Second Circuit, United States v. Bold, 19 F.3d 99 (2d Cir. 1994), cert. denied, ___ U.S. ____, 116 S.Ct. 2511, 135 L.Ed.2d 200 (1996), where a confirmed tip concerns an individual with a gun, the officer is faced with the choice of stopping and searching the individual, or waiting until the individual brandishes or uses the gun and the latter choice is unacceptable, thus leaving the stop and frisk as the only reasonable choice. We agree with that analysis.

As the officer had a reasonable suspicion of criminal activity that made valid the warrantless stop and frisk of J.L., the trial court's order granting the motion to suppress evidence is reversed and the cause remanded for further proceedings.

COPE, J., concurs.

SCHWARTZ, Chief Judge (specially concurring).

I concur in reversal because, somewhat to my surprise, the cases seemingly unanimously recognize a "firearm exception" to the rule that an anonymous tip which does not include predictive elements is insufficient to justify a Terry stop and frisk. See United States v. DeBerry, 76 F.3d 884 (7th Cir. 1996); United States v. Gibson, 64 F.3d 617 (11th Cir. 1995), cert. denied, ___ U.S. ___, 116 S.Ct. 1580, 134 L.Ed.2d 678 (1996); United States v. Bold, 19 F.3d 99 (2d Cir. 1994); United States v. Clipper, 973 F.2d 944 (D.C. Cir. 1992), cert. denied, 506 U.S. 1070, 113 S.Ct. 1025, 122 L.Ed.2d 171 (1993); United States v. McClinnhan, 660 F.2d 500 (D.C. Cir. 1981); Speight v. United States, 671 A.2d 442 (D.C. App. 1996), cert. denied, ___ U.S. ___, 117 S.Ct. 375, 136 L.Ed.2d 264 (1996); State v. Hasenbank, 425 A.2d 1330 (Me. 1981); 4 Wayne R. LaFave, Search and Seizure § 9.4(h), at 229-30 & nn.404-06 (3d ed. 1996), and cases cited; see also State v. Hetland, 366 So. 2d 831 (Fla. 2d DCA 1979), approved, 387 So. 2d 963 (Fla. 1980)(rationale criticized at 4 LaFave, supra § 9.4(h) n.404). See generally State v. Williams, 371 So. 2d 1074 (Fla. 3d DCA 1979), cert. denied, 381 So. 2d 771 (Fla. 1980).

IN THE CIRCUIT OF THE ELEVENTH JUDICIAL CIRCUIT

IN AND FOR DADE COUNTY, FLORIDA

JUVENILE DIVISION	ORDER	CASE NUMBER
		92-12143F2014
IN THE INTEREST OF:		D.O.B 10/3/79

Johnny Laguerre,

A CHILD(REN)

The Respondent's Motion to Suppress Evidence is hereby granted based on Butts v. State, 644 So.2d 605 (Fla.lDCA.1994).

It is further **ORDERED** that this Court shall retain jurisdiction of this cause for the purpose of making such further or other orders herein for the welfare of any child named herein as may be from time to time found necessary.

DONE AND ORDERED at Miami, Florida this 11 day of April, 1996.

STEVE LEVIN, CIRCUIT JUDGE

IN THE CIRCUIT COURT OF THE
ELEVENTH JUDICIAL CIRCUIT IN
AND FOR DADE COUNTY, FLORIDA
JUVENILE DIVISION

CASE NO. 95-12143 J014

IN THE INTEREST OF:
JOHNNY LAGUERRE,

Respondent.
_____/

March 28, 1996
Juvenile Justice Center
3300 Northwest 27 Avenue
Miami, Florida

The above-entitled cause came on for hearing before the Honorable STEVEN D. LEVINE, Circuit Judge, pursuant to notice.

APPEARANCES:

YVETTE REYES,
Assistant State Attorney,
State Attorney's Office,
on behalf of the State.

ELAINE HILL-HOLLOWAY,
Assistant State Attorney,
State Attorney's Office,
on behalf of the State.

ARTHUR MULLINS,
Assistant Public Defender,
Public Defender's Office,
on behalf of the Respondent.

INDEX

WITNESSES	DIRECT	CROSS	REDIRECT	RECROSS

Motion to Suppress

Officer Carmen Anderson (on behalf of the State)

By Ms. Reyes 3

By Mr. Mullins 8

(Thereupon, the tape recorder was turned on.)

MS. REYES: The State is ready to proceed on the motion to suppress.

THE COURT: Okay. Call your witnesses.

MS. REYES: Yvette Reyes for the State. The State calls Officer Anderson.

THE COURT: If you'll raise your right hand, please, Officer.

(Thereupon, the witness was duly sworn.)

MS. REYES: Just a moment, your Honor.

THEREUPON,

OFFICER CARMEN ANDERSON

was called as a witness on behalf of the State, and after being duly sworn, was examined and testified as follows:

DIRECT EXAMINATION

BY MS. REYES:

Q. Officer, would you please state your full name for the record.

A. Carmen Anderson [phonetic].

Q. And where are you presently employed?

A. Miami Lakes District.

Q. For Metro-Dade?

A. Yes.

Q. And were you so employed on October 13th, 1995?

A. Yes, I was.

Q. And how long have you been a police officer?

A. Fourteen-and-a-half years.

Q. Okay. Is that on routine patrol?

A. Yes.

Q. Okay. On October 13th, 1995, did there come a time when you came to know the Defendant, Johnny Laguerre?

A. Yes, I did.

Q. And can you please tell me what happened on that day?

A. Okay. Myself and another unit, which I don't recall who it was, were dispatched to the area of 183 Street and about Northwest 24th Avenue, by a bus stop that's there in front of a pawnshop. We were told by the anonymous complainant that there were several black males standing by the bus stop, and they gave a description of each one. The complainant advised that the male with the gun had a plaid-looking shirt and he was a black male. I don't recall what other information they gave us.

Q. Did you respond to that scene? How long after you got this call, did you respond to the scene?

A. About six minutes after.

Q. When you arrived on the scene, did you find the persons matching the description?

A. As we approached the bus stop, we saw three black males, one of which was wearing a plaid-looking shirt.

Q. What were the other two boys wearing?

A. I believe one was wearing like a tan polo shirt and another color top.

Q. Were you advised in the dispatch call whether it was an adult or a juvenile?

A. I believe they stated they were young.

Q. Okay. And they were at the bus stop?

A. Yes.

Q. At the same location?

A. Correct. In front of the pawnshop.

Q. Within minutes of the dispatch call?

A. Yes.

Q. Do you know who called?

A. No. They were anonymous.

Q. What did you do once you arrived?

A. When I arrived, I observed the three black males. The one fitting the description I approached first. I asked him to put his hands up on the bus stop. And when I -- as I started to frisk him, I saw the butt of a gun coming out of his left pocket.

Q. Before you approached him, was he doing anything, that you can recall, with his hands or -

A. No. They were just hanging out by the bus stop.

Q. What did you do once you searched him and you felt the bulge?

A. Well, as soon as I felt the bulge, I removed the gun from his pocket. And the other unit was there too, and we both took him into custody.

Q. Was he wearing a shirt over his pants or tucked

A. I think it was out, but it wasn't all the way down to where his pockets were hanging, 'cause his pants were hanging down low too.

Q. Could you see the bulge?

A. I could see the butt of the gun hanging out of his pocket. The butt was hanging out of this pocket.

Q. Okay. So you could see it.

A. Yes.

Q. You patted him down and you -- what kind of a gun was it?

A. It was a blue -- blue-steel gun. I don't remember if it was an automatic or a revolver. I think it was an automatic or automatic-looking type.

Q. Did you transport the Defendant?

A. No.

Q. Why not?

A. It was the end of my shift and I handed the call to another unit who was going to work later.

MS. REYES: May I have a moment, your Honor?

Q. (By Ms. Reyes) Officer, you just stated that you don't recall seeing them do anything prior to your approaching them.

A. Correct.

Q. Are you certain of that or is it that you don't remember?

A. No, I'm certain of that.

MR. MULLINS: Objection, Judge. Asked and answered.

THE COURT: Overruled.

MS. REYES: Excuse me, your Honor.

Q. (By Ms. Reyes) Just to clarify. When you actually saw the gun in the Defendant's pocket, when was that? At what point?

A. As soon as I started frisking him. As I headed down to the waist, waistline, I saw the pocket and I saw the gun butt hanging out of the pocket.

Q. So as you approached him, you didn't see the -

A. No.

Q. -- the gun butt at that time?

A. Correct.

Q. Did you find anything else on him?

A. No.

MS. REYES: Okay. I have no further questions at this point.

THE COURT: Cross.

MR. MULLINS: I just have a few questions, Judge.

CROSS-EXAMINATION

BY MR. MULLINS:

Q. Officer, there was another officer who responded at the same time. Is that correct?

A. Correct.

Q. And that officer patted down the other two individuals at the bus stop?

A. I believe so.

MR. MULLINS: Okay. I don't have any other questions.

THE COURT: Thank you, Officer. I appreciate your testimony. You can -- if you we'll call you back in and let you know what's happening.

Any other witnesses?

MS. REYES: No, your Honor. The State rests.